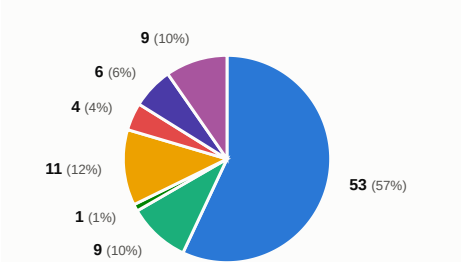


His comments across the evening, with the outcomes set aside

The six of thirteen cases in which the transcript anchors who was speaking. Categories, counting rule and exclusions are identical in all six; the other seven are not counted. Nothing here turns on whether the Board granted or denied — only on where what he said came from.



What the pooled view shows

Across the evening he is, more often than not, working from the file: fifty-three of ninety-three statements rest on the application, the testimony, or the ordinance.

The exceptions do not spread evenly across the six cases. They concentrate in one:

- 4 of 4 in Titus — every one — own expertise supplied as the applicant's proof
- 6 of 6 in Titus — every one — findings contradicted by the testimony given
- 7 of 11 in Titus — statements stated as fact with no source in the record

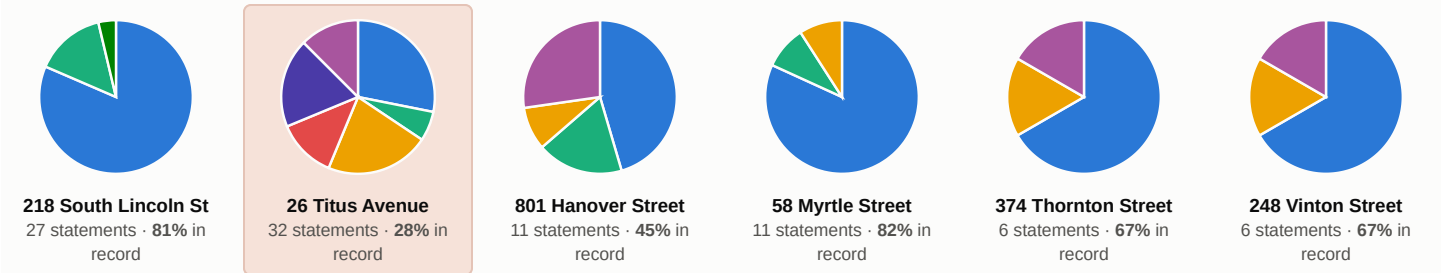
All six cases pooled · 93 statements

Grounded in the record or the ordinance
Questions testing the applicant's case
Own expertise used against the applicant's claim
Own expertise supplied as the applicant's proof

Stated as fact, with no source in the record
Contradicted by the testimony given
Weighed on a test the statute does not contain

Case by case

Each pie is one case, scaled to its own total, in the same order as the table below; the table's columns follow the legend order. Anchors and method: analysis/attribution.py, with every statement timestamped in the appendices.



CASE								N
218 South Lincoln St	22	4	1					27
26 Titus Avenue	9	2		4	7	6	4	32
801 Hanover Street	5	2			1		3	11
58 Myrtle Street	9	1			1			11
374 Thornton Street	4				1		1	6
248 Vinton Street	4				1		1	6
All six cases	53	9	1	4	11	6	9	93

What changes at Titus Avenue

There is a clear and consistent difference between how the Vice Chair handled 26 Titus Avenue and how he handled every other case in which he can be identified as the speaker. It is not a matter of degree, and it has nothing to do with which way he voted.

In the other five cases he examines. He works from what is in front of him — the applicant's own exhibits, the district's stated intent, the City's review sheet, the variance history in the packet. He asks questions capable of changing the answer. He attaches conditions to what he grants. And where he draws on knowledge of his own, he draws on it to test a claim the applicant has made, and says plainly that this is what he is doing.

At Titus Avenue he stops examining the case and begins making it. The findings stop coming from the record and start coming from him: a buffer no submitted plan describes, a uniqueness measured against his own years on the bench, a property-value conclusion carried by his real estate licence. He asks nothing capable of changing the result, and requires nothing of the applicant in return.

That shift matters because of where the burden sits. Under RSA 674:33 the applicant must carry all five criteria, and *Harrington v. Town of Warner* places that burden on the applicant alone. When a member supplies the proof an applicant has conceded it does not have, the burden is not met — it is relieved. And what a reviewing court later reads as the Board's findings are findings the hearing itself never produced.

Appendix — every statement counted, 26 Titus Avenue

Case ZBA2026-063. 32 statements. Timestamps are from the City's recording of September 10, 2026.

TIME	STATEMENT	CLASSIFIED AS
1:20:06	"in the redesign, you folks no longer need relief from dumpster location, townhouse parking drive, landscape or fence height?"	 Question
1:20:45	"thank you for your work in preserving the buffers"	 In the record
1:20:47	"your work to give the neighbors the 25 feet"	 Contradicted
1:20:50	"those will be left with the vegetation that's there undisturbed more or less" — confirming	 Question
1:55:45	"one of the perennial things that we see in almost all of these cases is the trees and the cutting down"	 In the record
1:55:55	"as the applicant had beat me to — when folks are doing a single family, they can cut all those trees down"	 In the record
1:56:02	"some of the primary concerns that we hear over and over are addressed by the enforced buffer in a plan development such as this"	 No source
1:56:07	"I do think this property has some very unique characteristics"	 No source
1:56:10	"18% of it has slope that's undevelopable by ordinance"	 In the record
1:56:13	"by removing curb cuts into Calef, I think we improve safety tremendously"	 No source
1:56:20	"if they're allowed to do ... those five houses, is that more in benefit of safety? Is it more benefit of the neighbors, of the spirit?"	 Wrong test
1:56:31	"I think this area is a transitional area in that neighborhood"	 Wrong test
1:56:38	"MX1, R1, any of the densities, they're not solely that. There are pieces that are exceptions"	 In the record
1:56:48	"We see a large multi-dwelling unit here ... the school, an entire side of it is cemetery"	 In the record
1:57:00	"the added buffers proposed here do create a reasonable buffer of landscape to the other properties"	 No source
1:57:04	"I don't think we've ever seen in my years on zoning another instance of properties that organically have such a large buffer"	 Expertise — as proof
1:57:18	"I do believe this is the best plan for this lot"	 Wrong test
1:57:22	"It is singularly unique in its size at 1.1 acre"	 Contradicted
1:57:28	"the buffers create a lot of alleviation to the problems we have"	 No source
1:57:31	"a lot of the other problems are addressed in the plan review process"	 In the record
1:57:48	Findings: "It's a tremendously unique lot at 1.1 acres"	 Contradicted
1:57:52	Findings: "a lot of slopes including 18% that is undevelopable based on the city's calculation of the slope review"	 In the record
1:57:58	Findings: "the quieting of title on the paper street creates additional buffers ... whether through the applicant or the other neighbours' efforts"	 Contradicted
1:58:08	Findings: "there are additional buffers then beyond what the plan development requires in itself"	 No source
1:58:15	Findings: "it reduces the need for curb cuts on Calef Road"	 In the record
1:58:18	Findings: "and preserves existing on street parking"	 Contradicted
1:58:26	Findings: the entrance is "off of Titus Avenue, which is in general safer to turn on to than the busier Calef"	 No source
1:58:54	Findings: "several other mixed or high density uses including the large development to the south, the cemetery and the Zion School"	 Contradicted
1:59:02	Findings: "Also, I am a real estate broker"	 Expertise — as proof
1:59:07	Findings: "I'm not aware of any circumstance where a development of this nature in Manchester has diminished a property around it. I've never seen a report or evidence of that"	 Expertise — as proof
1:59:16	Findings: "In general, reasonably well thought out development increases values"	 Expertise — as proof
1:59:18	Findings: "a tremendous amount of thought has been put into this, further evidenced by the applicant taking an additional month to rework and reduce counts"	 Wrong test

Appendix — every statement counted, 218 South Lincoln Street

Case ZBA2026-055, heard immediately before Titus Avenue the same evening. 27 statements.

TIME	STATEMENT	CLASSIFIED AS
0:33:51	"The three panels, though, it's house unit one and unit two, correct? So you need four at a third unit?"	 Question
0:36:24	"So that's not owner-occupied as you're presenting?"	 Question
0:36:30	"Anything can or will be, but that's not what it is"	 In the record
0:36:38	"what was the reason that it was allowed to degrade to its current state?"	 Question
1:00:04	"The inability to subdivide's not a hardship, it's absurd"	 In the record
1:00:13	"we have to remember that this was submitted under the old zoning ... this neighborhood was R2"	 In the record
1:00:20	"the specific spirit of that ordinance was a mix of single and duplexes"	 In the record
1:00:26	"when we look at the applicant's own exhibit, they've submitted that there's 41 singles, five two families, and one three"	 In the record
1:00:35	"this is clearly out of the spirit of the ordinance by definition"	 In the record
1:00:38	"it's also not in keeping with the character of this neighborhood"	 In the record
1:00:46	"I just don't see how creating the extra unit here is meeting the spirit of that or creating substantial justice to the neighbors"	 In the record
1:00:59	"there's no evidence that this was ever intended to be a third"	 In the record
1:01:06	"a house panel's gonna be needed to operate the one boiler system with the multi-zone, so that's not gonna fly with me either"	 Expertise — against
1:01:15	"just the fact that they overbuilt this house, which has been stated that the applicant had their own hand in, that's not a hardship"	 In the record
1:01:21	"if it is to be considered it's self-created"	 In the record
1:01:24	"there's no evidence here in my mind that the spirit's observed or any substantial justice is done, let alone a hardship"	 In the record
1:01:41	"it's existed as a two family for well over 50 years ... that kinda mutes that point in my book"	 In the record
1:01:55	"you say you've vacated apartment number two. What's going on in apartment number one?"	 Question
1:02:57	Findings: "I recognize that there are some points that the applicant has made that are factual"	 In the record
1:03:06	Findings: "This property is one of the largest lots in this neighborhood"	 In the record
1:03:10	Findings: "these are large units. We have a unit that's 1,800 square feet"	 In the record
1:03:15	Findings: "the applicant had a hand in building this and chose to create these large units"	 In the record
1:03:24	Findings: "The neighborhood ... as presented at this application is an R2 zone"	 In the record
1:03:27	Findings: "the spirit of that is a mix of single families and duplexes"	 In the record
1:03:34	Findings: "By the counts of the applicant's own submission, there are 41 single families, five two families, and one three family ... omitting the subject property"	 In the record
1:03:48	Findings: "this is not in the spirit of the ordinance and substantial justice is not done by creating the density of a three family in this district"	 In the record
1:04:18	Findings: "I tend to agree that a three family may not diminish the values of the property around it. So ... I don't believe that the property values will be diminished"	 In the record

The contrast is the point of the first page. At South Lincoln Street the Vice Chair worked from the applicant's own exhibit, the district's stated intent, and the evidence in the file, and used his outside knowledge once — to reject a claim the applicant had made. An hour later, at Titus Avenue, he supplied the applicant the property-value opinion its engineer had told the Board it did not obtain.